

notice of the application for the order, and of the place where copies of the draft order may be obtained, and of the time (which shall be not less than twenty-one days) within which any objection made with respect to the draft order by or on behalf of persons affected must be sent to the Board of Trade.

(2) Every objection must be in writing and state—

(a) The specific grounds of objection; and

(b) the omissions, additions, or modifications asked for.

(3) The Board of Trade shall consider any objection made by or on behalf of any persons appearing to them to be affected which is sent to them within the required time.

(4) Where the Board of Trade do not amend or withdraw any draft order to which any objection has been made, then (unless the objection either is withdrawn or appears to them to be frivolous) they shall, before making the order, direct an inquiry to be held in the manner hereinafter provided, and may, after considering the report of the person who held the inquiry, make the order either without modification or subject to such modification as they think fit, or may refuse to make the order.

81.—(1) The Board of Trade may appoint a competent and impartial person to hold an inquiry with regard to any draft order, and to report to them thereon.

(2) The inquiry shall be held in public, and any objector and any other person who, in the opinion of the person holding the inquiry, is affected by the draft order, may appear at the inquiry either in person or by counsel, solicitor, or agent.

(3) The witnesses on the inquiry may, if the person holding it thinks fit, be examined on oath.

(4) Subject as aforesaid, the inquiry and all proceedings preliminary and incidental thereto shall be conducted in accordance with rules made by the Board of Trade.

(5) The fee to be paid to the person holding the inquiry shall be such as the Board of Trade may direct.

CHAPTER 29.

An Act to authorise the granting of Credits and the undertaking of Insurances for the purpose of re-establishing Overseas Trade. [9th August 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) For the purpose of re-establishing trade or any branch of trade between the United Kingdom and any country, being one of the countries specified in the Schedule to this Act, the Board of Trade, with the consent of the Treasury, and after consultation with an advisory committee to be constituted by the Board of Trade for the purposes of this Act, may, where it appears

Power of Board of Trade to grant credits and under-take insurance.

to the Board advisable so to do by reason of circumstances arising out of the war—

- (a) make arrangements for granting to persons domiciled in or to companies incorporated by or under the laws of the United Kingdom credits in connection with the export to any country specified in the Schedule to this Act of goods wholly or partly produced or manufactured in the United Kingdom; and
- (b) undertake the business of the insurance (including re-insurance) of any such goods as aforesaid where risks of an abnormal or exceptional nature are involved, insurance against which cannot, in the opinion of the Board, be otherwise effected on reasonable terms, and for that purpose fix and receive premiums :

Provided that no credit shall be granted by the Board under this section—

- (i) so as to make the aggregate amount outstanding in respect of credits at any time exceed the sum of twenty-six million pounds; or
- (ii) to an alien, or to a firm in which the majority of the partners are aliens, or to a company where British subjects do not form a majority of the directors, or where a majority of the voting power is not in the hands of British subjects.

(2) Subject to the provisions of this section, any sums repaid to the Board of Trade in respect of credits granted under this section may be applied by the Board for the purpose of any further credits so granted at any subsequent date.

(3) Any sums received by the Board of Trade by way of commission in respect of credits granted under this section, and any premiums received by the Board in respect of insurances undertaken under this section, may be applied by the Board in payment respectively of any expenses incurred in connection with the granting of credits and any expenses incurred in connection with the business of insurance.

(4) Subject as otherwise expressly provided in this section, any expenses incurred by the Board of Trade under this section shall be paid out of moneys provided by Parliament, and any excess of receipts over expenses shall be paid into the Exchequer in accordance with directions to be given by the Treasury.

**Commence-
ment and
operation.** 2.—(1) This Act shall be deemed to have had effect as from the twenty-first day of June nineteen hundred and nineteen.

(2) The powers of the Board of Trade under this Act with respect to the granting of credits may be exercised at any time within the period of three years from the eighth day of September nineteen hundred and nineteen, and the powers of the Board

under this Act with respect to the business of insurance may be exercised at any time within the period of three years from the twenty-first day of June nineteen hundred and nineteen, so, however, that it shall be a term of every credit granted under this Act that any sum becoming due to the Board thereunder shall be repayable at some date not later than six years from the said eighth day of September nineteen hundred and nineteen.

3.—(1) The Board of Trade may, if they consider it expedient so to do, by order add to the Schedule to this Act the name of any country the industrial and financial condition of which has been disorganised by the war, and any such order may provide that, as respects the country specified in the order, credits shall only be granted as respects trade of such a character or conducted through such channels in that country as may be specified in the order.

Power to
make addi-
tions to
Schedule.

(2) Any order made under this section shall be laid before both Houses of Parliament as soon as may be after it is made, and if an address is presented to His Majesty by either House within the next subsequent twenty-one days after the order is so laid, praying that the order may be annulled, His Majesty in Council may annul the order and it shall thenceforth be void, but without prejudice to the validity of anything previously done thereunder.

4. Any things authorised under this Act to be done by or to the Board of Trade may be done by or to the President, a secretary, or an assistant secretary, of the Board, or by or to any person authorised in that behalf by the President of the Board.

Exercise of
powers of
Board of
Trade under
Act.

5. The Board of Trade shall publish quarterly a return showing the amounts of any credits granted under this Act, and the countries in respect of which credits have been granted.

Return of
credits
granted.

6. This Act may be cited as the Overseas Trade (Credits and Insurance) Act, 1920.

SCHEDULE.

Section 1.

Finland.
Latvia.
Esthonia.
Lithuania.
Poland.
Czecho-Slovakia.
Serb-Croat-Slovene State.
Rumania.
Georgia.
Armenia.